

## 25VECV00592 25VECV00592

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-08-04

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=NW%20%2CNWI%2C08%2F04%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CNWI%2C08%2F04%2F2026)

Source SHA-256: dc3d9d75a56cdf6d275162aa1ada25154614bb675ec9fe54aec763154c02579f

Case Number: 25VECV00592 Hearing Date: August 4, 2026 Dept: NWI

25VECV00592 SERGIO PENA v. LOS

ANGELES UNIFIED SCHOOL DISTRICT, et al.

August 4, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel Initial  
Responses

I.

Background

On February 3, 2025, Plaintiff Sergio

Pena ("Plaintiff") filed this action against Defendants Los

Angeles Unified School District ("LAUSD"), Los Angeles County Office of

Education ("Office of Education"), City of Los Angeles ("City"), County of Los

Angeles ("County"), West Valley Occupational Center ("West Valley"), John Doe

("Doe"), and Does 1 to 50 alleging five causes of action: (1)

assault; (2) battery; (3) intentional infliction of emotional distress; (4)

negligent hiring, supervision, and retention; and (5) negligence.

On July 8, 2026, LAUSD filed the instant motion to compel

Plaintiff's further responses to Form Interrogatories, Set Two. LAUSD also requests sanctions.

To date, the motion remains unopposed.

II. Discussion

As a preliminary matter, LAUSD erroneously filed the instant motion as a motion to compel further responses. The motion states Plaintiff has not provided any responses to Form Interrogatories, Set Two, indicating initial responses are in fact requested, not further responses. (Fajardo Decl., ¶ 6.) Therefore, the Court will review LAUSD's motion as a motion to compel initial responses to Form Interrogatories, Set Two.

#### Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc. § 2030.290, subd. (b).) The statute does not contain a time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

Where there has been no timely response to interrogatories, the propounding party may seek an order compelling a response. (Code Civ. Proc., § 2030.290, subd. (b).) Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc., § 2030.290, subd. (a).) Thus, unless the party to whom the interrogatory was directed obtains relief from waiver, he or she cannot raise objections to the interrogatories. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

LAUSD propounded discovery requests on Plaintiff on April 21, 2026. (Fajardo Decl., ¶ 3; Ex. A.) Plaintiff failed to respond. (Fajardo Decl., ¶ 6.) Accordingly, LAUSD's motion to compel initial responses to Form Interrogatories, Set Two, is granted.

#### Sanctions

"The court may impose a monetary sanction ordering

that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (CCP § 2023.030(a).) Misuse of the discovery process includes "[f]ailing to respond or to submit to an authorized method of discovery." (CCP § 2023.010(d) and (g).)

LAUSD requests monetary sanctions in the amount of \$1,545.00, consisting of three hours associate work drafting the instant motion at an hourly rate of \$230.00, an anticipated two hours partner work reviewing the opposition and drafting a reply and one hour partner work for appearing at the hearing at an hourly rate of \$265.00, and a \$60.00 filing fee. (Fajardo Decl., ¶ 7.) The Court finds the amount of hours unreasonable, as no opposition has been filed and the motion is simple and straightforward.

Accordingly, the Court reduces the sanctions to a reasonable amount of \$537.50, consisting of 1.5 hours associate work for drafting the instant motion at an hourly rate of \$230.00, 0.5 hours partner work for appearing at the hearing at an hourly rate of \$265.00, and a \$60.00 filing fee.

III.

Conclusion

LAUSD's motion to compel initial responses to Form Interrogatories, Set Two, is GRANTED

Additionally, Plaintiff, in pro per, is to pay defense counsel sanctions in the amount of \$537.50 within 20 days of this hearing.

Moving party to give notice.